

Kunwar Pal Singh Raghav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 September 2013 · WRIT - C No. - 45408 of 2013 · **Writ dismissed; relegated to clause 6.5 complaint before Executive Engineer.**

HEADNOTE

A writ challenging a demand notice for electricity dues was dismissed on alternative remedy. The consumer was left to file an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer.

FACTUAL SUMMARY

Kunwar Pal Singh Raghav filed a writ petition challenging a demand notice dated 7 August 2013 issued for recovery of electricity dues. Counsel for the State and for the distribution licensee (respondents 4 and 5) appeared. Without examining the correctness of the bill, the Division Bench held that a grievance against an electricity bill is to be taken as a complaint under paragraph 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer, and dismissed the petition on alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A grievance regarding an electricity bill or demand notice is to be raised by filing an appropriate complaint under clause 6.5 of the Electricity Supply Code, 2005 before the concerned Executive Engineer; a writ petition raising that grievance is dismissed on the ground of alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 7.8.2013 AND THE UNDERLYING ELECTRIC DUES

The Court did not examine the bill or demand on merits, relegating the petitioner to clause 6.5. ¶ 1